

Central Valley Regional Water Quality Control Board

11 September 2023

CERTIFIED MAIL

7021 1970 0001 5446 5228

Rush Creek Meadows, LP
Eric Wilkins
1348 W Herndon Ave, Suite 103
Fresno, CA 93711

CERTIFIED MAIL

7021 1970 0001 5446 5181

Douglas Family Generation Skipping Trust for
Benefit of Cooper Jeffrey Douglas
1121 Hogarth Way
El Dorado Hills, CA 95762

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7021 1970 0001 5446 5211

Douglas Family Generation Skipping Trust for
Benefit of Hunter Garner Douglas
1121 Hogarth Way
El Dorado Hills, CA 95762

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7021 1970 0001 5446 5174

Kevin and Elisa O'Neill Trust
1121 Hogarth Way
El Dorado Hills, CA 95762

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7021 1970 0001 5446 5167

Douglas Family Generation Skipping
Trust for Benefit of Bridget Skye
Perrachi Douglas
1121 Hogarth Way
El Dorado Hills, CA 95762

NOTICE OF APPLICABILITY (NOA); STATE WATER RESOURCES CONTROL BOARD ORDER WQ-2014-0153-DWQ; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; RUSH CREEK MEADOWS, LP, ET AL.; RUSH CREEK ONSITE WASTEWATER TREATMENT SYSTEM; TULARE COUNTY

On 30 June 2023, the Central Valley Water Board received a Report of Waste Discharge (RWD) requesting for coverage under State Water Resources Control Board Order WQ-2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (Small Domestic General Order) for the Rush Creek Onsite Wastewater Treatment System (OWTS or Facility). The RWD was signed and stamped by Brian Shoener (CH 5129), a registered professional chemical engineer with Quad Knopf, Inc. (QK) and includes a Form 200 and a technical report.

The Facility is currently covered under State Water Resources Control Board Water Quality Order No. 97-10-DWQ *General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* and was assigned Order

No. 97-10-DWQ-R5043. The Facility is at 1030 North Anderson Road, Exeter, CA 93221 and is currently permitted to discharge up to 11,000 gallons per day (gpd) of domestic wastewater to an onsite percolation pond.

The Facility is owned by Rush Creek Meadows, LP, Kevin and Elisa O'Neill Trust, Douglas Family Generation Skipping Trust for Benefit of Cooper Jeffrey Douglas, Hunter Garner Douglas, and Bridget Skye Perrachi Douglas (hereafter jointly referred to as Discharger). The building that discharges domestic wastewater to the Facility was previously leased and operated by Peninsula Packaging, LLC. However, Sonoco® purchased Peninsula Packaging, LLC and now assumes the lease.

Based on the information provided in the RWD, the Facility treats and disposes of less than 100,000 gallons per day (gpd) of domestic wastewater and is therefore eligible for coverage under the general and specific conditions of the General Order. This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described below. You are hereby assigned enrollee number **2014-0153-DWQ-R5396** for your system. This letter and coverage under the General Order supersedes NOA 97-10-R5-043.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) No. **2014-0153-DWQ-R5396**. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

DISCHARGE DESCRIPTION

The Facility is located about two miles northeast of the City of Exeter on Road 180 (see Attachments A and B). The Facility currently receives domestic wastewater from bathrooms, showers, and breakroom kitchen sinks.

Attachment C is a process flow diagram which provides a schematic overview of the facilities. The system is designed for a flow of 11,000 gallons per day (gpd). Effluent from the Facility passes through a manual bar screen prior to the activated sludge treatment system, which consists of two aerated tanks and a single secondary clarifier. According to the RWD, there is no return activated sludge; however, enzymes are used to help break down the solids. Once the solids settle, excess sludge from the secondary clarifier is removed and hauled offsite. Treated effluent is discharged to a single unlined percolation pond with a storage capacity of 0.96 million gallons (not including two feet of freeboard).

FACILITY SPECIFIC REQUIREMENTS AND EFFLUENT LIMITATIONS

The Discharger will maintain exclusive control over the discharge and shall comply with the terms and conditions of this NOA, General Order 2014-0153-DWQ, all attachments, and MRP No. 2014-0153-DWQ-R5396.

In accordance with Section B.1.a of the General Order, the monthly average total discharge from the WWTF to the percolation pond **shall not exceed 11,000 gpd**. In accordance with the requirements of the General Order, this NOA does not specify a nitrogen effluent limitation since the Facility flow rate is less than 20,000 gpd.

As discussed in the attached memorandum, the Discharger shall comply with the effluent limitations specified in Table 1 below when discharging to the percolation pond. Compliance with the effluent limitations specified in Table 1 shall be determined at a point after the activated sludge system prior to discharge to the percolation pond.

Table 1 – Effluent Limitations

Constituent	Unit	Monthly Average Limit	7-day Average Limit
Biochemical Oxygen Demand (BOD)	mg/L	30	45
Total Suspended Solids (TSS)	mg/L	30	45

The General Order states in Section B.1 that the Discharger shall comply with the setbacks as described in Table 3 of the General Order. This table summarizes different setback requirements for wastewater treatment system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines, where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the Table 2 below:

Table 2 – Site Specific Applicable Setback Requirements

Equipment or Activity	Domestic Well (feet)	Flowing Stream (feet)	Ephemeral Stream Drainage (feet)	Property Line (feet)	Lake or Reservoir (feet)
Septic Tank, Treatment Unit, Treatment System, or Collection System	150	50	50	5	200
Impoundment (undisinfected secondary effluent)	150	150	150	50	200

The Discharger shall comply with all applicable sections of the General Order, including:

1. Activated Sludge Systems requirements in Section B.4. of the General Order;
2. Pond Systems requirements in Section B.5 of the General Order;

3. Sludge/Solids/Biosolids Disposal requirements in Section B.8 of the General Order; and
4. Groundwater and Surface Water Limitations specified in Section C.1 of the General Order

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports **by 90 days** of issuance of the NOA.

- Spill Prevention and Emergency Response Plan (Provision E.1.a.).
- Sampling and Analysis Plan (Provision E.1.b).
- Sludge Management Plan (Provision E.1.c).

A copy of the Spill Prevention and Emergency Response Plan and the Sampling and Analysis Plan, and Sludge Management Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request. The Sludge Management Plan shall be submitted to the Central Valley Water Board **within 90 days** of the issuance of the NOA.

As stated in Section E.2.w., in the event any change in control or ownership of the Facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board Executive Officer.

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ, with all attachments, and **MRP No. 2014-0153-DWQ-R5396** could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation. If wastewater flows to the Facility substantially increase and the monthly average flows approach or exceed 11,000 gpd, the Central Valley Water Board staff must be contacted to determine if further analysis is required.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

On 31 May 2018, the Central Valley Water Board adopted Basin Plan amendments incorporating new strategies for addressing ongoing salt and nitrate accumulation in the Central Valley as part of the Central Valley Salinity Alternatives for Long-Term Sustainability (**CV-SALTS**) initiative. Further details of these strategies are discussed in the enclosed memorandum. As these strategies are implemented, the Central Valley

Water Board may find it necessary to modify the requirements of this NOA to ensure the goals of the Salt and Nitrate Control Program are met.

All monitoring reports and other correspondences shall be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 256315,
Facility Name: Rush Creek Onsite Wastewater Treatment System,
Order: 2014-0153-DWQ-R5396.

All documents, including responses to inspections and written notifications, submitted to comply with this NOA shall be directed, via the paperless office system, to the Compliance and Enforcement Unit, attention to Omar Mostafa. Mr. Mostafa can be reached at (559) 445-5197 or Omar.Mostafa@waterboards.ca.gov. Questions regarding the permitting aspects of the NOA, and notification for termination of coverage under the Small Domestic General Order, shall be directed, via the paperless office system, to the WDR Permitting Unit, attention Cruz Romero. Mr. Cruz Romero can be reached at (559) 445-5036 or by email at Cruz.Romero@waterboards.ca.gov.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Resources Control Board must receive the petition by 5:00 p.m., 30 days after the date of this NOA, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Resources Control Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the internet at [Copies of the laws and regulations applicable to filing petitions \(https://www.waterboards.ca.gov/public_notices/petitions/water_quality\)](https://www.waterboards.ca.gov/public_notices/petitions/water_quality) or will be provided upon request. If you have any questions regarding this matter, please contact Cruz Romero by phone at (559) 445-5036 or by email at Cruz.Romero@waterboards.ca.gov.

In order to conserve paper and reduce mailing costs, a paper copy of General Order WQO 2014-0153-DWQ has been sent only to the Discharger. Others are advised that the [General Order](#) is available on the State Water Board's website (http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf).


for Patrick Pulupa
Executive Officer

(See next page for attachments, enclosures' and cc's)

- Attachments:
- Attachment A – Site Location Map
 - Attachment B – Site Plan Map
 - Attachment C – Process Flow Diagram

- Enclosures:
- Monitoring and Reporting Program 2014-0153-DWQ-R5396
 - Staff Review Memorandum for Rush Creek OWTS
 - State Water Resources Control Board Order WQ 2014-0153-DWQ (Discharger only)

cc's

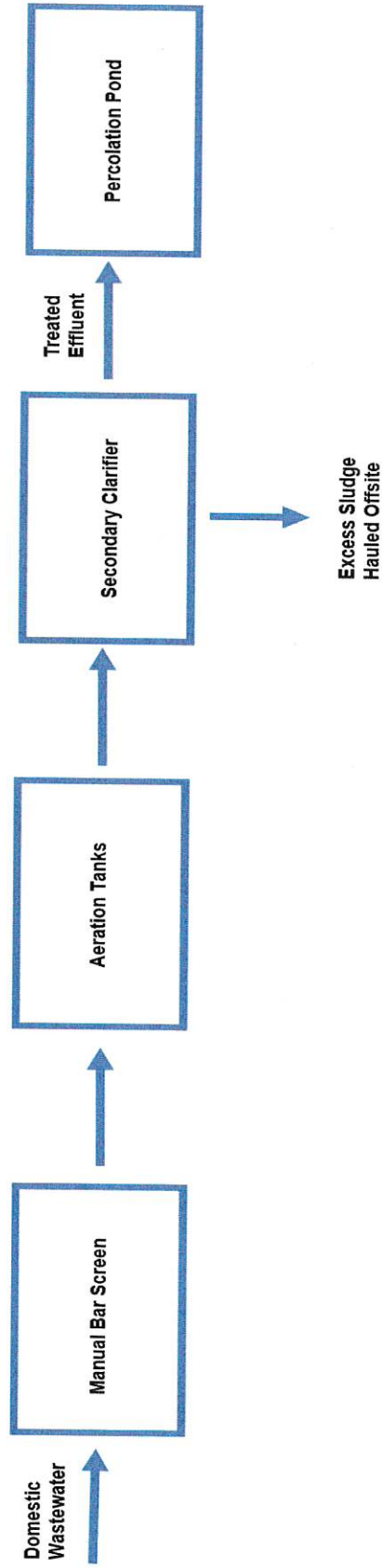
- Christopher Moskal, State Water Resources Control Board, OCC, Sacramento (via email)
- Laurel Warddrip, State Water Resources Control Board, DWQ, Sacramento (via email)
- Omar Mostafa, Central Valley Water Board, Fresno (via email)
- Tricia Wathen, State Water Resources Control Board, DDW, (via email)
- Tulare County Resource Management Agency, Tulare (via email)
- Ralph Gutierrez, Ralph Gutierrez Water Service, Exeter (via email)
- Martin Querin, Quad Knopf, Inc., Fresno (via email)
- Ron Wathen, Quad Knopf, Inc., Fresno (via email)
- Brian Shoener, Quad Knopf, Inc., Fresno (via email)



ATTACHMENT A – SITE LOCATION MAP
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5396



ATTACHMENT B – SITE PLAN MAP
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5396



ATTACHMENT C – PROCESS FLOW DIAGRAM
NOTICE OF APPLICABILITY 2014-0153-DWQ-R5396

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

**MONITORING AND REPORTING PROGRAM NO. 2014-0153-DWQ-R5396
FOR
RUSH CREEK MEADOWS, LP, ET AL.;
RUSH CREEK ONSITE WASTEWATER TREATMENT SYSTEM
TULARE COUNTY**

This Monitoring and Reporting Program (MRP) describes requirements for the Rush Creek Onsite Wastewater Treatment System (OWTS of Facility). This MRP is issued pursuant to Water Code section 13267. Rush Creek Meadows, LP, Kevin and Elisa O'Neill Trust, Douglas Family Generation Skipping Trust for Benefit of Cooper Jeffrey Douglas, Hunter Garner Douglas, and Bridget Skye Perrachi Douglas (hereafter collectively referred to as Discharger) shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) or Executive Officer.

Section 13267 of the California Water Code states, in part:

"In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports and shall identify the evidence that supports requiring that person to provide the reports."

Section 13268 of the California Water Code states, in part:

"(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of Section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of Section 13399.2, or falsifying and information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with Article 2.5 (commencing with section 13323) of Chapter 5 for

a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs."

The Discharger owns the OWTS that is subject to the Notice of Applicability (NOA) 2014-0153-DWQ-R5396, which enrolls the OWTS under State Water Resources Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). The reports required in this MRP are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Central Valley Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Resources Control Board, Environmental Laboratory Accreditation Program (ELAP) certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments;
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer;
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

ACTIVATED SLUDGE MONITORING

Samples of effluent shall be taken at an area that represents the effluent quality distributed to the disposal area. At a minimum the effluent monitoring shall consist of the following:

Table 1 – Effluent Monitoring Requirements

Parameter	Units	Sample Type	Sampling Frequency	Reporting Frequency
Flow	gpd	Metered or Estimated (See 1 below)	Continuous (See 2 below)	Quarterly
pH	Std. Units	Grab	Weekly	Quarterly

Parameter	Units	Sample Type	Sampling Frequency	Reporting Frequency
EC	µmhos/cm	Grab	Monthly	Quarterly
BOD ₅	mg/L	Grab	Monthly	Quarterly
TSS	mg/L	Grab	Monthly	Quarterly
Total Nitrogen (as N)	mg/L	Grab	Quarterly	Quarterly

1. The flow rate may be metered or estimated based on potable water supply meter readings, pump run times, or other approved method.
2. For continuous analyzers, the Discharger shall report documented routine meter maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation.

POND MONITORING

The percolation pond shall be monitored as specified below:

Table 2 – Pond Monitoring Requirements

Parameter	Units	Sample Type	Inspection/ Reporting Frequency
Dissolved Oxygen (see 1 below)	mg/L	Grab	Quarterly
Freeboard	0.1 feet	Staff Gauge	Quarterly
Odors	---	Observation	Quarterly
Berm Condition	---	Observation	Quarterly

1. DO shall be measured between 8:00 am and 10:00 am and shall be taken opposite the pond inlet at a depth of approximately one foot, when there is sufficient water in the pond. Should the DO be below 1.0 mg/L during a sampling event, the Discharger shall take all reasonable steps to correct the problem and commence daily DO monitoring in the pond until the problem has been resolved.

SLUDGE/BIOSOLIDS MONITORING

The Discharger shall report the handling and disposal of all solids (e.g. screenings, grit, sludge, biosolids, etc.) generated at the wastewater treatment facility. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernable. The data shall be summarized to clearly

illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the appropriate Regional Water Board office, in this case 1685 E Street, Fresno, CA 93706.

To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 256315,
Facility Name: Rush Creek OWTS,
Order: 2014-0153-DWQ-R5396

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Regional Water Board on the **first day of the second month after the quarter ends** (e.g., the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At the minimum, the quarterly reports shall include:

1. Results of all required monitoring.
2. A comparison of monitoring data to the requirements (including the flow limitation), disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements. Data shall be presented in tabular format.
3. Copies of laboratory analytical report(s) and chain of custody form(s).
4. A copy of the logs from the wastewater collection system observations conducted during the quarter. The Discharger shall note if any repairs were conducted or need to be conducted.

B. Annual Report

Annual Reports shall be submitted to the Regional Water Board **by March 1st following the monitoring year**. The Annual Report shall include the following:

1. Tabular and graphical summaries of all monitoring data collected during the year.

2. Copies of laboratory analytical report(s) and chain of custody form(s).
3. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
4. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
5. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall begin implementing the above monitoring program on
1 October 2023.

Ordered by:



PATRICK PULUPA, Executive Officer



(Date)

GLOSSARY

BOD ₅	Five-day biochemical oxygen demand
CaCO ₃	Calcium carbonate
DO	Dissolved oxygen
EC	Electrical conductivity at 25° C
FDS	Fixed dissolved solids
TDS	Total dissolved solids
TKN	Total Kjeldahl nitrogen
TSS	Total suspended solids
Continuous	The specified parameter shall be measured by a meter continuously.
24-hr Composite	Samples shall be a flow-proportioned composite consisting of at least eight aliquots over a 24-hour period.
Daily	Every day except weekends or holidays.
Twice Weekly	Twice per week on non-consecutive days.
Weekly	Once per week.
Twice Monthly	Twice per month during non-consecutive weeks.
Monthly	Once per calendar month.
Quarterly	Once per calendar quarter.
Semiannually	Once every six calendar months (i.e., two times per year) during non-consecutive quarters.
Annually	Once per year.
Mg/L	Milligrams per liter
mg/kg	Milligrams per kilogram
mL/L	Milliliters [of solids] per liter
µg/L	Micrograms per liter
µmhos/cm	Micromhos per centimeter
gpd	Gallons per day
gal/acre/mo	Gallons per acre per month
mgd	Million gallons per day
MPN/100 mL	Most probable number [of organisms] per 100 milliliters
NA	Denotes not applicable
NTU	Nephelometric Turbidity Units
UV	Ultraviolet
mJ/cm ²	Millijoules/cm ²
SU	Standard pH units



Central Valley Regional Water Quality Control Board

TO: Scott J. Hatton
Supervising Water Resource Control Engineer

FROM: Alexander S. Mushegan
Senior Water Resource Control Engineer
RCE 84208

Cruz Romero
Water Resource Control Engineer



DATE: 11 September 2023

APPLICABILITY OF COVERAGE UNDER STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; RUSH CREEK MEADOWS, LP, ET AL.; RUSH CREEK ONSITE WASTEWATER TREATMENT SYSTEM; FRESNO COUNTY

On 30 June 2023, Brian Shoener (CH 5129) with Quad Knopf, Inc. submitted a Report of Waste Discharge (RWD) for the Rush Creek Onsite Wastewater Treatment System (OWTS or Facility) on behalf of Rush Creek Meadows, LP, Kevin and Elisa O'Neill Trust, and Douglas Family Skipping Trust (hereafter collectively referred to as Discharger). The Facility and land is owned as part of a tenancy in common with Rush Creek

Meadows, LP owning 50%, Kevin and Elisa O'Neill Trust owning 25%, and three separate Douglas Family Skipping Trust owning approximately 8% each. The onsite wastewater treatment system is operated by Ralph Gutierrez Water Service (Operator). The Facility is currently enrolled under State Water Resources Control Board's (State Water Board), Water Quality Order No. 97-10-DWQ, *General Waste Discharges to Land by Small Domestic Wastewater Treatment Systems* and was assigned enrollee No. 97-10-DWQ-R5043.

In 2014, the State Water Resources Control Board adopted Water Quality Order 2014-0153-DWQ, *General Waste Discharge Requirements For Small Domestic Wastewater Treatment Systems* (General Order 2014-0153-DWQ). General Order

2014-0153-DWQ superseded General Order 97-10-DWQ and no longer allowed new enrollees under General Order 97-10-DWQ. General Order 2014-0153-DWQ states that existing enrollees may continue discharging under 97-10-DWQ until notified by the Central Valley Regional Water Quality Control Board (Central Valley Water Board) to update coverage under General Order 2014-0153-DWQ. On 5 April 2023, Central Valley Water Board staff sent a letter pursuant to Water Code Section 13260, requesting for the Discharger to enroll under General Order 2014-0153-DWQ.

This memorandum provides a summary of Central Valley Water Board staff's review of the RWD, and other provided documents, and the applicability of the Facility's discharge to be covered under the General Order.

BACKGROUND INFORMATION

Sonoco® purchased the previous tenant, Peninsula Packaging, LLC, and now operates a plastic manufacturing facility that is designed for a flow of 11,000 gallons per day (gpd) of domestic wastewater. According to NOA No. 97-10-DWQ-R5043, historical average flow for 2003 and 2004 were 7,400 gpd and 5,700 gpd, respectively. Self-monitoring Reports (SMRs) submitted by the discharger in 2022 indicate that the annual average flows were around 2,000 gpd. According to the RWD, no industrial wastewater or any other source of wastewater is sent to the treatment system. All wastewater generated onsite is from bathrooms, showers, and kitchen sinks.

The onsite wastewater treatment system (OWTS) consists of activated sludge treatment featuring two aerated tanks and a single clarifier; however, the RWD states that there is no return activated sludge. According to the operator, when the activated sludge system was installed in the 1960's, the system was not constructed to return activated sludge. The operator stated that enzymes were added to the system to break down the solids. When a sufficient amount of solids accumulated at the top of the system, a septic tank remover collects the solids using a pump and hauls the solids offsite for disposal. Both aeration tanks are stated to be ten feet in diameter, while the clarifier is six feet in diameter. Treated effluent from the secondary clarifier is discharge to a single unlined percolation pond that is approximately 0.96 million gallons in volume (minus two feet of freeboard). A process flow diagram is included as Attachment C of the NOA. Storm water collected from the Facility is routed to an onsite stormwater pond.

The General Order states facilities discharging under 100,000 gpd are eligible for coverage. Furthermore, since the Facility has flows under 20,000 gpd, no nitrogen evaluation is necessary. According to the operator, the Facility provide sufficient treatment to comply with the biochemical oxygen demand (BOD) and total suspended solids (TSS) effluent limitations specified in the General Order for activated sludge treatment systems (i.e., monthly average of 30 mg/L and 7-day average of 45 mg/L).

POTENTIAL THREAT TO WATER QUALITY

The RWD does not discuss underlying groundwater; however, based on the [California Department of Water Resources Sustainable Groundwater Management Act Data Viewer](https://sgma.water.ca.gov/webgis/?appid=SGMADataViewer#currentconditions) (https://sgma.water.ca.gov/webgis/?appid=SGMADataViewer#currentconditions) for Spring 2022, groundwater depth in the area was around 100 to 110 feet deep. Groundwater gradient direction appears to be towards the northeast. The closest domestic well appears to be the onsite supply well, which is located at the southeast corner of the Facility.

There is no known historical groundwater monitoring data for the Facility. The previous NOA stated that groundwater in the area was 42 feet below ground surface with an electrical conductivity (EC) ranging from 150 µmhos/cm to 450 µmhos/cm. To help determine underlying groundwater quality, Central Valley Water Board staff reviewed available well data for nearby wells using the [Groundwater Ambient Monitoring and Assessment Program](https://gamagroundwater.waterboards.ca.gov/gama) (https://gamagroundwater.waterboards.ca.gov/gama). One well with a screen depth between 80 feet and 130 feet was located within a two-mile radius of the discharge location (Well #A = AGC100012325-KBWQA00020). The data are summarized in Table 1 below. Samples were collected on 24 October 2018, 1 July 2019 and 8 June 2021, the averages are presented below.

Table 1 – Groundwater Quality from Nearby Well (2018- 2021)

Constituent/Parameter)	Units	Well #A
Alkalinity	mg/L	172
Boron	mg/L	0.04
Chloride	mg/L	7.9
Dissolved Oxygen	mg/L	7.4
Bicarbonate	mg/L	190
Potassium	mg/L	2.5
Sodium	mg/L	37.9
pH	Standard Units	7.5
Electrical Conductivity (EC)	µmhos/cm	446
Sulfate	mg/L	21.4
Total Dissolved Solids	mg/L	241

The Facility utilizes a single onsite well to supply water (location shown in Attachment B of the NOA).

Influent quality to the wastewater treatment system was provided in the RWD. The influent domestic wastewater is within the typical ranges for domestic wastewater according to the U.S. Environmental Protection Agency (EPA). The following average influent concentrations for the Facility are provided in Table 2 below.

Table 2 - Influent Quality

Constituent/Parameter)	Units	Influent
BOD	mg/L	220
TSS	mg/L	220

Constituent/Parameter)	Units	Influent
Nitrate (as N)	mg/L	4
Sodium	mg/L	23
Chloride	mg/L	4.3
EC	µmhos/cm	900

As part of monitoring and reporting program (MRP) 97-10-DWQ-R5043, the discharger was required to conduct effluent monitoring for BOD, TSS, nitrate (as N), total nitrogen, and total coliform. However, according to SMRs from January of 2022 through December of 2022, the required monitoring was not conducted. The submitted monitoring reports provided data for flow, dissolved oxygen (DO), pH, and EC. The SMRs reported average effluent values of 5,300 µmhos/cm in May and 5,600 µmhos/cm in July for EC, which was substantially higher than any other month in 2022. Staff inquired with the operator on the elevated EC levels. According to the onsite operator, the values are errors due to incorrect calibration of Myron-L® meter. With removal of the two unrepresentative values, the annual average effluent EC in 2022 was around 940 µmhos/cm. While the Discharger did not collect effluent quality data for other parameters (e.g., BOD and TSS), the influent data for the Facility shows typical domestic wastewater strength. Based on available information, including the depth to groundwater, expected strength of the domestic wastewater, and existing flow conditions, the Facility appears to meet the conditions of the General Order.

In accordance with Attachment 1 of the General Order, with flows less than 20,000 gpd a nitrogen effluent evaluation is not required.

MONITORING REQUIREMENTS

Monitoring requirements included in the following sections from Attachment C of the General Order are appropriate for this discharge:

- Activated Sludge System Monitoring;
- Pond Monitoring; and
- Solids Disposal Monitoring

NITROGEN LIMIT EVALUATION

The General Order requires that wastewater systems with a flow rate greater than 20,000 gallons per day be evaluated to determine if nitrogen effluent limits are required, as described in Attachment 1 of the General Order. The design capacity for the facility is 11,000 gpd. Therefore, a Nitrogen Effluent Limit Evaluation is not required for the Facility.

SALT AND NITRATE CONTROL PROGRAMS

As part of the Central Valley Salinity Alternatives for Long Term Sustainability (CVSALTS) initiative, the Central Valley Water Board adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting (Resolution R5-2018-0034). Pursuant to the Basin Plan amendments, dischargers were sent a Notice to Comply on

5 January 2021 with instructions and obligations for the Salt Control Program within one year of the effective date of the amendments. Upon receipt of the Notice to Comply, the Discharger was given until 15 July 2021 to inform the Central Valley Water Board of their choice between Option 1 (Conservative Option for Salt Permitting) or Option 2 (Alternative Option for Salt Permitting).

For the Nitrate Control Program, the Rush Creek OWTS (**CV-SALTS ID: 2477**) is within Groundwater Basin 5-22.11 (San Joaquin Valley – Kaweah), a Priority 1 basin/sub-basin. The Discharger selected Pathway B (Management Zone Permitting Approach) and joined the Kaweah Water Foundation.

For the Salt Control Program, the Discharger selected Pathway 2 (Alternative Salinity Permitting Approach). According to our records, the Discharger is in compliance with the Salt Control Program. In order to remain in compliance, all applicable fees must be paid. As a reminder, the payment portal for 2023 is currently open till the end of August.

More information on the Salt and Nitrate Control Programs can be found at the [CV-SALTS Website](https://www.cvsalinity.org/public-info) (<https://www.cvsalinity.org/public-info>).